



Appeal Decision

Site visit made on 15 September 2026

by **Thomas Courtney BA(Hons) MA MRTPI**

an Inspector appointed by the Secretary of State

Decision date: 21st September 2026

Appeal Ref: 6009677

Black Cottage, Henley Down, Catsfield, TN33 9BN

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a grant of planning permission subject to conditions.
 - The appeal is made by Mr & Mrs A Ashworth against the decision of Rother District Council.
 - The application Ref RR/2025/2135/FULL was approved on 21 April 2026 and planning permission was granted subject to conditions.
 - The development permitted is the proposed conversion of existing carport/garage building with alterations to form self-contained holiday let.
 - The condition in dispute is No 4 which states that: *The glazing for roof lights on the rear elevation hereby permitted shall not be installed until details of the glazing, which shall include information on the glass technology to be utilised to prevent or significantly reduce light transmission through the glazing at night, which could be in the form of electrochromatic glass or 'smart glazing', has been submitted to and approved in writing by the local planning authority. The glazing shall be installed and thereafter retained/maintained in accordance with the approved details.*
 - The reason given for the condition is: *To prevent light pollution and to protect the dark night skies and local ecology of the surrounding countryside and the High Weald National Landscape, in accordance with Policies EN1 and EN5 of the Rother Local Plan Core Strategy and Policies DEN1, DEN2 and DEN7 of the Development and Site Allocations (DaSA) Local Plan and Objectives DS1 and DS2 of the High Weald AONB Management Plan.*
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Decision

1. The appeal is allowed and the planning permission Ref RR/2025/2135/FULL for the proposed conversion of existing carport/garage building with alterations to form self-contained holiday let at Black Cottage, Henley Down, Catsfield, TN33 9BN granted on 21 April 2026 by Rother District Council, is varied by deleting Condition 4 and substituting it for the following condition:
 - 4 *The glazing for rooflights on the rear elevation hereby permitted shall not be installed until details of the measures to be incorporated into the rooflights to prevent or significantly reduce light transmission through the glazing at night have been submitted to and approved in writing by the local planning authority. The approved measures shall be installed before the rooflights are first brought into use and shall thereafter be retained and maintained in accordance with the approved details.*

Preliminary Matters

2. Since the appeal was submitted, a new National Planning Policy Framework ('the Framework') was published in August 2026. As the Framework is a material consideration in the determination of planning appeals, both main parties were given the opportunity to comment on the implications of the updated national policy. I have taken their responses into account in reaching my decision.

Background and Main Issue

3. Policy DM6 of the newly adopted Framework outlines that planning conditions should be kept to a minimum and only imposed where they are necessary, relevant to planning and to the development to be permitted, enforceable, precise and reasonable in all other respects.
4. Planning permission ref RR/2025/2135/FULL ('the permission') was granted subject to conditions. The appeal relates to the appellant's request to remove Condition 4 which seeks use of technology to prevent or significantly reduce night-time light transmission from the glazing to the rear elevation of the self-contained holiday let. The Council considers that Condition 4 is necessary to protect dark skies and local ecology.
5. The main issue is whether or not Condition 4 is necessary in the interests of biodiversity and the landscape and scenic beauty of the High Weald National Landscape ('the HWNL') having regard to light pollution.

Reasons

6. The site lies within the countryside and the HWNL, where the protection of dark skies forms an important component of landscape character and tranquillity. The development plan and the High Weald Management Plan seek to minimise light pollution and light spill in order to conserve the natural beauty of the area and protect wildlife. Furthermore, Policy N4 of the Framework requires substantial weight to be afforded to conserving and enhancing the natural beauty of protected landscapes, whilst Policy P3 seeks to maintain the character of tranquil areas and limit adverse impacts from artificial light on intrinsically dark landscapes and nature.
7. The rooflights would face an undeveloped orchard-like parcel of land rather than an established built-up area. The evidence before me indicates that this outlook comprises largely lightly managed vegetation including trees, grassed areas and boundary shrubs with no significant existing light sources or residential properties beyond. In such circumstances, any light emitted through the rooflights would be experienced against a notably dark backdrop and would be more perceptible than in a built-up setting. Any night-time light spill would introduce an additional artificial light source into an otherwise largely unlit area and would erode the sense of darkness and tranquillity that contributes to the landscape character and scenic beauty of this part of the HWNL.
8. The vegetation immediately beyond the rooflights also forms part of a largely undeveloped environment where nocturnal species may be present. Additional artificial lighting has the potential to alter the behaviour and movement of light-sensitive species and increase disturbance within that habitat.
9. The limited size of the openings does not of itself demonstrate that controls are unnecessary. The concern relates not simply to the quantity of glazing but to the direction and visibility of light spill from rooflights within an intrinsically dark rural landscape. The Council has referred to technical guidance indicating that rooflights can have a greater effect on upward light spill than vertical glazing.
10. I acknowledge that the host dwelling benefits from no equivalent planning restrictions on windows, rooflights or internal lighting. Nevertheless, the absence of

restrictions on the main dwelling does not render a condition unnecessary in relation to the approved holiday let. Planning conditions must be assessed having regard to the particular impacts of the development permitted. In this regard, the disputed rooflights would be positioned close to the boundary with the adjoining undeveloped parcel of land and directed towards that unlit area. By contrast, the principal glazing associated with the main dwelling is set further back within the site. Whilst the main dwelling may also contribute to existing levels of night-time lighting, the rooflights would represent an additional source of light transmission facing the adjoining undeveloped land. The existence of other light sources does not negate the need to consider whether light spill arising from the development permitted should be controlled.

11. The appellant further relies on the possibility that blinds, curtains or blackout blinds could be installed. Whilst such measures may reduce light transmission, their effectiveness would depend upon the actions of future occupants. Given that the accommodation would operate as a holiday let, such measures would not provide a sufficiently reliable or enduring means of controlling light spill. By contrast, a permanently installed solution would provide certainty that the mitigation would remain effective irrespective of occupier behaviour.
12. I have also considered the appeal decision relating to Paygate, Whatlington Road, Battle¹. However, that case turned on its own facts. There, the Inspector attached significance to the relationship of the property to neighbouring buildings and concluded that the development would not result in a tangible increase in overall light spill. The Inspector also attached particular importance to the presence of a substantial overhang above the bifold doors and roof sections projecting from the building, which acted as physical barriers limiting outward and upward light spill. By contrast, the rooflights in the appeal before me would be installed flush within the roof slope and would face open, undeveloped land and trees with no comparable screening features, buildings or existing light sources beyond. Consequently, I do not find the circumstances directly comparable, and I afford that decision limited weight.
13. However, whilst I find that a condition controlling light transmission is justified, I am not persuaded that the wording of the existing condition is sufficiently proportionate. The requirement refers specifically to electrochromic glass or smart glazing. The evidence before me does not demonstrate that those technologies are uniquely capable of achieving the objective sought. The Council accepts that alternative permanent measures, including films or similar treatments applied to the glazing, may achieve comparable reductions in night-time light transmission.
14. In these circumstances, I find that a condition requiring details of a permanent means of reducing light transmission through the rooflights remains necessary. However, that objective can be achieved through a broader range of permanently installed measures than those specified by the appeal condition. I therefore find that Condition 4 in its current form is overly prescriptive and more restrictive than is necessary to achieve the intended planning objective. It should thus be deleted and replaced by a condition which would allow flexibility as to the type of permanently installed light-reduction measure employed, whilst continuing to secure the objective of reducing night-time light spill. Such a condition would satisfy the requirements of Policy DM6 of the Framework.

¹ Appeal Ref: APP/U1430/W/23/3314102

15. Accordingly, I conclude that the deletion of Condition 4 and its replacement with the revised condition would minimise light pollution and therefore protect biodiversity and the landscape and scenic beauty of the HWNL. As such, it would not conflict with Policy EN1 of the Rother Local Plan Core Strategy 2014 ('the CS') or Policies DEN1 or DEN2 of the Development and Site Allocations Local Plan 2019 ('the DASA') insofar as they include requirements broadly for development that is sympathetic to landscape character, that maintains dark skies and the tranquillity of more remote areas and that conserves and enhances the landscape and scenic beauty of the National Landscape. Nor would there be conflict with Policy EN5 of the CS or Policy DEN7 of the DASA which require protection for biodiversity and habitats, including in respect of lighting, and minimisation of light pollution.
16. Furthermore, the replacement condition would support Objectives DS1 and DS2 of the High Weald Management Plan, which seek to preserve the dark skies of the High Weald by minimising light pollution and internal light spill, and to protect wildlife and habitats from light pollution.
17. The deletion of Condition 4 and its replacement with the revised condition would also remain consistent with Policies N4 and P3 of the Framework, insofar as they seek to conserve and enhance the natural beauty of protected landscapes and limit adverse impacts from artificial light on intrinsically dark landscapes and nature.

Conclusion

18. For the reasons given above, I conclude that the appeal should be allowed and the planning permission should be varied by deleting the disputed Condition 4 and substituting it for a new condition.

Thomas Courtney

INSPECTOR